

**7. JONES, ET AL. v. BRISCOMBE, ET AL., 26CV1001****Petition to Compel Arbitration and Stay Proceedings**

On June 15, 2026, pursuant to Code of Civil Procedure sections 1281.2 and 1281.4, defendants Sean Briscoombe and Sean Briscoombe, LLC (collectively, “defendants”) filed a petition to compel arbitration and stay litigation. On August 3, 2026, plaintiffs Matthew Jones and Christina Tomolillo (collectively, “plaintiffs”) filed evidentiary objections and an opposition brief. Defendants filed no reply.

**1. Background**

Plaintiffs are both California residents. Their complaint alleges that defendant Sean Briscoombe resides in Texas and defendant Sean Briscoombe, LLC is a Texas limited liability company with its principal place of business in Texas. (Compl., ¶¶ 6, 7.)

On September 3, 2024, plaintiff Matthew Jones signed an agreement to retain defendant Sean Briscoombe, LLC to perform various accounting, trust, and tax matters. (Petr., Ex. A.)

Section 9 of the Agreement includes a Texas choice-of-law provision and Section 10 of the Agreement includes an arbitration provision. Section 10 provides in pertinent part: “All disputes arising out of an related to this Agreement ... shall be resolved exclusively by arbitration initiated and conducted in Austin, Texas, by and in accordance with the rules of the American Arbitration Association.”

Plaintiff Tomolillo is not a party to Agreement and is not referenced therein. However, the complaint alleges that Ms. Tomolillo was an intended beneficiary of the services provided by defendant Sean Briscoombe, LLC and she sues said defendant on that basis.

On April 3, 2026, plaintiffs filed a complaint against defendants, asserting causes of action for: (1) violation of Unfair Competition Law (Bus. & Prof. Code § 17200, et seq.); (2) fraud and intentional misrepresentation; (3) breach of contract; (4) breach of fiduciary duty; (5) restitution; (6) conversion; and (7) declaratory relief.

## 2. Evidentiary Objections

Plaintiffs filed two objections. The court sustains Objection Number 1. The court also sustains Objection Number 2 with respect to the term “timely.”

## 3. Request for Judicial Notice

Plaintiffs request the court to take judicial notice of two documents, Exhibit A (unrecorded property records) and Exhibit B (a recorded quitclaim deed). Neither exhibit is attached to the request for judicial notice. The court denies the request on this ground. (Cal. Rules of Court, rule 5.115.) Even if plaintiffs had attached copies of the proposed material to the request, it appears to the court that the exhibits are not necessary, helpful, or relevant to the dispute raised by the instant petition. (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6.)

## 4. Discussion

As an initial matter, defendant claims that the issue of arbitrability of the matter is an issue for the arbitrator and not this court. Alternatively, defendant argues that the Agreement is valid and enforceable, and covers the dispute raised in plaintiffs’ complaint. Further, defendant argues that, as a third-party beneficiary to the Agreement, plaintiff Tomolillo must be compelled to arbitrate her claims.

Plaintiff opposes the petition on the following grounds: (1) this court should decide arbitrability because the Agreement does not clearly and unmistakably delegate such responsibility to the arbitrator; (2) the Agreement is unenforceable because it is procedurally and substantively unconscionable; (3) defendant Sean Briscoombe, as an individual, is not a party to the Agreement and thus, does not have the right to compel arbitration; and (4) plaintiff Tomolillo is not a signatory to the Agreement and cannot be compelled to arbitrate.

### 4.1. Applicable Law

Both state and federal law have statutory schemes for the enforcement of arbitration agreements. The Federal Arbitration Act (“FAA”) (9 U.S.C. § 1, et seq.)

“governs agreements in contracts involving interstate commerce .... [Citations.]” (*Cable Connection, Inc. v. DIRECTV, Inc.* (2008) 44 Cal.4th 1334, 1351 (*Cable Connection*).) The FAA has both substantive and procedural provisions. (*Avila v. Southern Cal. Specialty Care, Inc.* (2018) 20 Cal.App.5th 835, 840.) Section 2 of the FAA provides in part that “[a] written provision in ... a contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract or transaction ... shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract ....” (9 U.S.C. § 2.) This statute, “declaring the enforceability of arbitration agreements, ‘create[s] a body of federal substantive law of arbitrability, applicable to any arbitration agreement within the coverage of the Act.’ [Citation.]” (*Cable Connection, supra*, at pp. 1350–1351.)

However, in general, the FAA’s procedural provisions apply only in federal court, not in state court. (*Cable Connection, supra*, 44 Cal.4th at p. 1351; *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 345 (*Victrola*).) In state court, the procedural rules of the California Arbitration Act (“CAA”) “apply by default to cases brought in California courts, including those in which the FAA governs the arbitrability of the controversy.” (*Quach v. Cal. Commerce Club, Inc.* (2024) 16 Cal.5th 562, 582 (*Quach*).) Nevertheless, “the FAA’s procedural rules may apply if the parties expressly agree they do ....” (*Ibid.*; accord, *Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 394 (*Cronus*).)

Code of Civil Procedure section 1281.2 is part of the CAA. (*Cronus, supra*, 35 Cal.4th at p. 387.) Code of Civil Procedure section 1281.2<sup>3</sup> addresses the “ ‘situation that arises

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<sup>3</sup> Code of Civil Procedure section 1281.2 states in part: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] ... [¶] (c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or

when a controversy' " is covered by an arbitration agreement but " 'also affects claims by or against other parties not bound by the arbitration agreement.' " (*Cronus, supra*, at p. 393.)

Critically, Code of Civil Procedure section 1281.2 gives the trial court "the discretion to, among other things, stay or deny arbitration if one or more parties to the action is not subject to arbitration, and multiple proceedings might result in conflicting rulings involving the same transaction. [Citation.]" (*Gravillis v. Coldwell Banker Residential Brokerage Co.* (2006) 143 Cal.App.4th 761, 783.)

In contrast, the FAA "does not authorize courts ... to refuse to enforce a valid arbitration provision to avoid duplicative proceedings or conflicting rulings. [Citation.]" (*Mastick v. TD Ameritrade, Inc.* (2012) 209 Cal.App.4th 1258, 1263; accord, *Valencia v. Smyth* (2010) 185 Cal.App.4th 153, 156–157 (*Valencia*).) Instead, the FAA requires arbitration to proceed on all claims within the scope of the arbitration agreement.<sup>4</sup> (*Valencia, supra*, at p. 157.) In other words, "deciding related disputes in different forums occurs because the FAA 'requires piecemeal resolution when necessary to give effect to an arbitration agreement.' [Citation.]" (*Mastick, supra*, at p. 1263.)

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series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact." (*Id.*, subd. (c).) Section 1281.2 further states: "If the court determines that a party to the arbitration is also a party to litigation in a pending court action or special proceeding with a third party as set forth under subdivision (c), the court (1) may refuse to enforce the arbitration agreement and may order intervention or joinder of all parties in a single action or special proceeding; (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding; or (4) may stay arbitration pending the outcome of the court action or special proceeding." (*Id.*, last par.)

<sup>4</sup> The distinction is significant in this case where plaintiffs oppose the petition, in part, on the grounds that there may be conflicting rulings if the court orders some, but not all parties to arbitrate (i.e., Sean Briscoombe and Christina Tomolillo, both of whom plaintiffs claim are not parties to the Agreement and cannot enforce the Agreement and/or be compelled to arbitrate under the Agreement).

“In accordance with choice-of-law principles, the parties may limit the trial court’s authority to ... deny arbitration under the CAA by adopting the more restrictive procedural provisions of the FAA.” (*Valencia, supra*, 185 Cal.App.4th at p. 157; accord, *Victrola, supra*, 46 Cal.App.5th at p. 346.) For example, in *Victrola*, the arbitration provision stated, “ ‘Enforcement of this agreement to arbitrate shall be governed by the Federal Arbitration Act....’ ” (*Id.* at p. 343, boldface omitted.) The appellate court determined that “when an agreement provides that its ‘enforcement’ shall be governed by the FAA, the FAA governs a party’s motion to compel arbitration.” (*Id.* at p. 346.) The appellate court concluded that because “the parties incorporated the procedural provisions of the FAA into the [a]greement,” the trial “court could not look to [s]ection 1281.2(c) to deny the” motion to compel arbitration. (*Id.* at pp. 342-343.)

Here, there is no mention of the FAA in the Agreement. Therefore, the court easily concludes that the FAA does not apply.

Absent a choice-of-law provision expressly mandating the application of the procedural law of another jurisdiction, the provisional provisions of the CAA apply by default. (*Royal Alliance Associates, Inc. v. Liebhaber* (2016) 2 Cal.App.5th 1092, 1104, fn. 4.) In this case, the Agreement provides that the terms of the Agreement “shall be governed and construed in accordance with the internal law of the state of Texas applicable to contracts made and to be wholly performed therein, without giving effect to Texas’s principles of choice of law and conflicts of law.” (Petn., Ex. A at ¶ 9 [“Choice of Law”].)

Defendant does not expressly address this issue but appears to take the position that the CAA applies. (See, Petn., at 6:12 [“That is all the California Arbitration Act requires at this stage.”].) Plaintiffs do not address the issue, either.

For purposes of deciding the instant petition to arbitrate, the court needs additional briefing from the parties to determine whether the Texas choice-of-law provision in the Agreement results in the displacement of the CAA procedural rules.

**TENTATIVE RULING # 7: THE COURT, ON ITS OWN MOTION, CONTINUES THE HEARING TO 1:30 P.M., FRIDAY, OCTOBER 16, 2026, IN DEPARTMENT FOUR AND DIRECTS THE PARTIES TO SUBMIT SUPPLEMENTAL BRIEFING ON THE ISSUE OF WHETHER THE TEXAS CHOICE-OF-LAW PROVISION IN THE ARBTIRATION AGREEMENT DISPLACES THE PROCEDURAL RULES OF THE CALIFORNIA ARBITRATION ACT FOR THE PURPOSES OF DETERMINING THIS PETIITON. SUPPLEMENTAL BRIEFS SHALL BE FILED AND SERVED NO LATER THAN OCTOBER 6, 2026.**